



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1479: deeds; identification; forgery; notice; notaries

BLACKMAN FLOOR AMENDMENT

1. Stipulates that this legislation does not apply to notarial acts performed for a remotely located individual, if both of the following apply:
 - a. a notary journal includes the individual's identification credential number; and
 - b. the notary retains the audiovisual recording for at least seven years.

M. LAVENDER

3/23/2026

(602) 926-3848

BLACKMAN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1479
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 11, chapter 3, article 3, Arizona Revised
3 Statutes, is amended by adding section 11-472, to read:

4 11-472. Recording; photo identification; exemptions

5 A. FOR ANY DOCUMENT THAT IS RECORDED IN PERSON AT THE RECORDER'S
6 OFFICE OR AT A RECORDING KIOSK, A PERSON SHALL PROVIDE THE RECORDER WITH A
7 VALID FORM OF PHOTO IDENTIFICATION UNLESS THE DOCUMENT TO BE RECORDED IS
8 SUBMITTED BY ANY OF THE FOLLOWING:

9 1. AN ESCROW OFFICER OR ESCROW OFFICE.

10 2. A TITLE INSURANCE AGENT OR TITLE INSURER AS DEFINED IN SECTION
11 20-1562.

12 3. A STATE-CHARTERED OR FEDERALLY CHARTERED BANK OR CREDIT UNION.

13 4. AN ACTIVE MEMBER OF THE STATE BAR OF ARIZONA.

14 5. A GOVERNMENTAL ENTITY, INCLUDING AN AGENCY, BRANCH OR
15 INSTRUMENTALITY OF THE FEDERAL GOVERNMENT.

16 B. THE RECORDER MAY NOT RETAIN A COPY OF THE PERSON'S
17 IDENTIFICATION, BUT SHALL NOTE IN THE RECORDING SYSTEM OR RECEIPT FOR THE
18 RECORDING, OR BOTH, THE FOLLOWING:

19 1. THE TYPE OF IDENTIFICATION.

20 2. THE NAME ON THE IDENTIFICATION.

21 3. THE IDENTIFICATION NUMBER.

22 C. THE INFORMATION NOTED PURSUANT TO SUBSECTION B OF THIS SECTION
23 IS NOT A PUBLIC RECORD, IS EXEMPT FROM TITLE 39, CHAPTER 1 AND IS NOT
24 SUBJECT TO DISCLOSURE.

1 Sec. 2. Title 11, chapter 3, article 7, Arizona Revised Statutes,
2 is amended by adding section 11-544, to read:

3 11-544. Notice to owner: changed information

4 ON OR BEFORE JANUARY 1, 2027, THE ASSESSOR SHALL PROVIDE A SYSTEM
5 FOR NOTIFYING AN OWNER OF A PARCEL OF REAL PROPERTY WHEN THE ASSESSOR
6 RECEIVES NOTICE OF A CHANGE IN THE OWNERSHIP OF OR THE MAILING ADDRESS FOR
7 THE OWNER OF THE PARCEL OF REAL PROPERTY. THE SYSTEM SHALL ALLOW AN OWNER
8 TO CHOOSE TO PARTICIPATE AND IS VOLUNTARY FOR THE OWNER, AND THE NOTICE
9 SHALL BE PROVIDED PROMPTLY BY EMAIL, TEXT MESSAGE OR OTHER SIMILAR MEANS.

10 Sec. 3. Section 11-1133, Arizona Revised Statutes, is amended to
11 read:

12 11-1133. Affidavit of legal value

13 A. Each deed evidencing a transfer of title and any contract
14 relating to the sale of real property shall have appended at the time of
15 recording an affidavit of the seller and the buyer to the transaction, or
16 the agent of either the seller or buyer, or both, in a form approved by
17 the department of revenue, who shall declare and jointly certify the
18 following information:

19 1. The name, ~~and~~ MAILING address AND TELEPHONE NUMBER of the buyer
20 and seller. THE BUYER AND SELLER MAY PROVIDE ADDITIONAL CONTACT
21 INFORMATION, INCLUDING EMAIL ADDRESSES.

22 2. The name and address where a tax statement may be sent.

23 3. The complete legal description of the property.

24 4. The situs address, if any, of the property.

25 5. The date of sale.

26 6. The total consideration paid for the property, the amount of
27 cash down payment and whether ~~or not~~ the type of financing included cash,
28 a new ~~third-party~~ THIRD-PARTY loan, a new loan from the seller, an
29 assumption of an existing loan or an exchange or trade of property.

30 7. Whether ~~or not~~ the estimated market value of personal property
31 received by the buyer equals five ~~per cent~~ PERCENT or more of the total
32 consideration.

33 8. The assessor's parcel number or numbers assigned to the real
34 property by the county assessor or, in the case of a new parcel or parcels
35 not yet assigned a parcel number, the parcel number or numbers of the
36 previous parcel or parcels from which the new parcel or parcels are
37 created.

38 9. The conditions of the transaction, including the relationship,
39 if any, of the parties.

40 10. The use and description of the property and, in the case of a
41 residential dwelling, whether the property is to be owner-occupied or
42 rented.

43 11. The name and address of the person to contact regarding
44 information contained on the affidavit.

45 B. If a beneficiary of a foreclosed trustee's deed receives payment
46 based on private mortgage insurance covering the sale that is in addition
47 to the proceeds of the sale, the beneficiary shall submit, in a form

1 approved by the department of revenue, to the county recorder in the
2 county where the property is located within four months after the date of
3 the trustee's sale a beneficiary's declaration of additional funds
4 received that contains the following:

5 1. The county assessor's parcel number or numbers assigned as of
6 the date of the trustee's sale.

7 2. The name and address of the beneficiary submitting the
8 declaration.

9 3. The date of the trustee's sale.

10 4. The highest bid amount received by the trustee at the trustee's
11 sale.

12 5. The recording number of the trustee's deed on sale.

13 6. The amount of any additional compensation received by the
14 beneficiary within three months after the date of the trustee's sale.

15 C. The county recorder shall refuse to record any deed and any
16 contract relating to the sale of real property if a complete affidavit of
17 legal value is not appended unless the instrument bears a notation
18 indicating an exemption pursuant to section 11-1134.

19 D. An affidavit is complete for THE purposes of this section if all
20 of the required information is stated on the affidavit form or is
21 indicated on the form as "not applicable".

22 Sec. 4. Repeal

23 Section 12-524, Arizona Revised Statutes, is repealed.

24 Sec. 5. Section 33-420, Arizona Revised Statutes, is amended to
25 read:

26 33-420. False documents; liability; special action; damages;
27 violation; classification

28 A. A person purporting to claim an interest in, or a lien or
29 encumbrance against, real property, who causes a document asserting such
30 claim to be recorded in the office of the county recorder, knowing or
31 having reason to know that the document is forged, ~~OR~~ groundless,
32 contains a material misstatement or false claim or is otherwise invalid is
33 liable to the owner or beneficial title holder of the real property for
34 the sum of ~~not less than five thousand dollars,~~ AT LEAST \$5,000 or for
35 treble the actual damages caused by the recording, whichever is greater,
36 and reasonable attorney fees and costs of the action.

37 B. The owner or beneficial title holder of the real property may
38 bring an action pursuant to this section in the superior court in the
39 county in which the real property is located for such relief as is
40 required to immediately clear title to the real property as provided for
41 in the rules of procedure for special actions. This special action may be
42 brought based on the ground that the lien is forged, ~~OR~~ groundless,
43 contains a material misstatement or false claim or is otherwise invalid.
44 The owner or beneficial title holder may bring a separate special action
45 to clear title to the real property or join such action with an action for
46 damages as described in this section. In either case, the owner or

1 beneficial title holder may recover reasonable attorney fees and costs of
2 the action if ~~he~~ THE OWNER OR BENEFICIAL TITLE HOLDER prevails.

3 C. A person who is named in a document ~~which~~ THAT purports to
4 create an interest in, or a lien or encumbrance against, real property and
5 who knows that the document is forged, ~~OR~~ groundless, contains a material
6 misstatement or false claim or is otherwise invalid ~~shall be~~ IS liable to
7 the owner or BENEFICIAL title holder for the sum of ~~not less than one~~
8 ~~thousand dollars,~~ AT LEAST \$1,000 or for treble actual damages, whichever
9 is greater, and reasonable attorney fees and costs as provided in this
10 section, if ~~he~~ THE PERSON wilfully refuses to release or correct ~~such~~ THE
11 document of record within twenty days ~~from~~ AFTER the date of a written
12 request from the owner or beneficial title holder of the real property.

13 D. A document purporting to create an interest in, or a lien or
14 encumbrance against, real property not authorized by statute, judgment or
15 other specific legal authority is presumed to be groundless and invalid.

16 E. A person purporting to claim an interest in, or a lien or
17 encumbrance against, real property, who causes a document asserting such
18 claim to be recorded in the office of the county recorder, knowing or
19 having reason to know that the document is forged, ~~OR~~ groundless,
20 contains a material misstatement or false claim or is otherwise invalid,
21 is guilty of a class ~~1 misdemeanor~~ 5 FELONY.

22 Sec. 6. Section 41-254, Arizona Revised Statutes, is amended to
23 read:

24 41-254. Personal appearance required; thumbprint; exceptions

25 A. If a notarial act relates to a statement made in or a signature
26 executed on a record, the individual making the statement or executing the
27 signature shall appear personally before the notarial officer.

28 B. If a notarial act involves a translator under section 41-253,
29 subsection F, the translator shall appear personally before the notary
30 public.

31 C. IF THE DOCUMENT TO BE NOTARIZED IS A DEED, QUITCLAIM DEED, DEED
32 OF TRUST OR OTHER DOCUMENT THAT AFFECTS REAL PROPERTY OR A POWER OF
33 ATTORNEY DOCUMENT, THE NOTARY PUBLIC SHALL REQUIRE THE PARTY SIGNING THE
34 DOCUMENT TO PLACE THE PARTY'S RIGHT THUMBPRINT IN THE NOTARY'S
35 JOURNAL. IF THE RIGHT THUMBPRINT IS NOT AVAILABLE, THE NOTARY PUBLIC
36 SHALL HAVE THE PARTY USE THE PARTY'S LEFT THUMB, OR ANY AVAILABLE FINGER,
37 AND SHALL SO INDICATE IN THE JOURNAL. IF THE PARTY SIGNING THE DOCUMENT
38 IS PHYSICALLY UNABLE TO PROVIDE A THUMBPRINT OR FINGERPRINT, THE NOTARY
39 PUBLIC SHALL SO INDICATE IN THE JOURNAL AND SHALL ALSO PROVIDE AN
40 EXPLANATION OF THAT PHYSICAL CONDITION.

41 D. SUBSECTION C OF THIS SECTION DOES NOT APPLY TO ANY OF THE
42 FOLLOWING:

43 1. A TRUSTEE'S DEED THAT RESULTS FROM A JUDICIAL OR NONJUDICIAL
44 FORECLOSURE.

45 2. A DEED OF RELEASE AND RECONVEYANCE.

1 3. A NOTARIAL ACT ~~[FOR A DOCUMENT PRESCRIBED BY SUBSECTION C OF~~
2 ~~THIS SECTION]~~ ~~[PERFORMED]~~ FOR A REMOTELY LOCATED INDIVIDUAL ~~[AS PRESCRIBED~~
3 ~~BY AND IN COMPLIANCE WITH SECTION 41-263]~~ IF ~~[BOTH OF THE FOLLOWING APPLY:~~

4 (a) THE NOTARY JOURNAL INCLUDES THE INDIVIDUAL'S IDENTIFICATION
5 CREDENTIAL NUMBER.

6 (b)] ~~[THE AUDIOVISUAL RECORDING OF THE NOTARIZATION SHOWS THE FORMS~~
7 ~~OF IDENTIFICATION PROVIDED FOR THE NOTARIZATION,]~~ THE NOTARY RETAINS THE
8 AUDIOVISUAL RECORDING FOR AT LEAST SEVEN YEARS ~~[AND THE NOTARY OTHERWISE~~
9 ~~COMPLIES WITH SECTION 41-263].~~

10 Sec. 7. Section 41-263, Arizona Revised Statutes, is amended to
11 read:

12 41-263. Notarial act performed for remotely located
13 individual; definitions

14 A. A remotely located individual may comply with section 41-254 by
15 using communication technology to appear before a notary public.

16 B. A notary public located in this state may perform a notarial act
17 using communication technology for a remotely located individual if:

18 1. The notary public has any of the following:

19 (a) Personal knowledge under section 41-255, subsection A of the
20 remotely located individual's identity.

21 (b) Satisfactory evidence of the identity of the REMOTELY LOCATED
22 individual by oath or affirmation from a credible witness appearing before
23 and identified by the notary public under section 41-255, subsection B or
24 this section.

25 (c) Satisfactory evidence of the identity of the remotely located
26 individual by using at least two different types of identity proofing.

27 2. The notary public is able reasonably to confirm that a record
28 before the notary public is the same record in which the remotely located
29 individual made a statement or on which the individual executed a
30 signature.

31 3. The notary public, or a person acting on behalf of the notary
32 public, creates an audiovisual recording of the performance of the
33 notarial act.

34 4. For a remotely located individual located outside the United
35 States, both of the following apply:

36 (a) The record either:

37 (i) Is to be filed with or relates to a matter before a public
38 official or court, governmental entity or other entity subject to the
39 jurisdiction of the United States.

40 (ii) Involves property located in the territorial jurisdiction of
41 the United States or involves a transaction substantially connected with
42 the United States.

43 (b) The notary public has no actual knowledge that the act of
44 making the statement or signing the record is prohibited by the foreign
45 state in which the remotely located individual is located.

46 C. If a notarial act is performed under this section, the
47 certificate of notarial act required by section 41-264 and the short form

1 certificate provided in section 41-265 must indicate that the notarial act
2 was performed using communication technology.

3 D. A short form certificate provided in section 41-265 for a
4 notarial act subject to this section is sufficient if either of the
5 following applies:

6 1. The form of certificate complies with rules adopted under
7 subsection G, paragraph 1 of this section.

8 2. The certificate is in the form provided in section 41-265 and
9 contains a statement substantially as follows: "This notarial act involved
10 the use of communication technology."

11 E. A notary public, a guardian, conservator or agent of a notary
12 public or a personal representative of a deceased notary public shall
13 retain the audiovisual recording created under subsection B, paragraph 3
14 of this section or cause the recording to be retained by a repository
15 designated by or on behalf of the person required to retain the recording.
16 Unless a different period is required by rule adopted under subsection G,
17 paragraph 4 of this section **AND EXCEPT AS PRESCRIBED BY SECTION 41-254,**
18 the recording must be retained for a period of at least five years after
19 the recording is made.

20 F. Before a notary public performs the notary public's initial
21 notarial act under this section, the notary public must notify the
22 secretary of state that the notary public will be performing notarial acts
23 with respect to remotely located individuals and identify the technologies
24 the notary public intends to use. If the secretary of state has
25 established standards under subsection G of this section and section
26 41-275 for approval of communication technology or identity proofing, the
27 communication technology and identity proofing must conform to the
28 standards.

29 G. In addition to adopting rules under section 41-275, ~~on or before~~
30 ~~July 1, 2022,~~ the secretary of state shall adopt rules under this section
31 regarding performance of notarial acts for remotely located individuals.
32 The rules may:

33 1. Prescribe the means of performing a notarial act involving a
34 remotely located individual using communication technology.

35 2. Establish standards for communication technology and identity
36 proofing.

37 3. Establish requirements or procedures to approve providers of
38 communication technology and the process of identity proofing.

39 4. Establish standards and a period for the retention of an
40 audiovisual recording created under subsection B, paragraph 3 of this
41 section.

42 H. Before adopting, amending or repealing a rule governing
43 performance of a notarial act with respect to a remotely located
44 individual, the secretary of state must consider:

45 1. The most recent standards regarding the performance of a
46 notarial act with respect to a remotely located individual adopted by

1 national standard-setting organizations and the recommendations of the
2 national association of secretaries of state.

3 2. Standards, practices and customs of other jurisdictions that
4 have laws substantially similar to this section.

5 3. The views of governmental officials and entities and other
6 interested persons.

7 I. For the purposes of this section:

8 1. "Communication technology" means an electronic device or process
9 that:

10 (a) Allows a notary public and a remotely located individual to
11 communicate with each other simultaneously by sight and sound.

12 (b) When necessary and consistent with other applicable law,
13 facilitates communication with a remotely located individual who has a
14 vision, hearing or speech impairment.

15 2. "Foreign state" means a jurisdiction other than the United
16 States, a state or a federally recognized Indian tribe.

17 3. "Identity proofing" means a process or service by which a third
18 person provides a notary public with a means to verify the identity of a
19 remotely located individual by a review of personal information from
20 public or private data sources.

21 4. "Outside the United States" means a location outside the
22 geographic boundaries of the United States, Puerto Rico, the United States
23 Virgin Islands and any territory, insular possession or other location
24 subject to the jurisdiction of the United States.

25 5. "Remotely located individual" means an individual who is not in
26 the physical presence of the notary public who performs a notarial act
27 under subsection B of this section.

28 Enroll and engross to conform

29 Amend title to conform

WALT BLACKMAN

1479FloorBLACKMAN.docx

03/19/2026

2:45 PM

C: MR

130ATNNIF